

CAN'T SEE EYE TO EYE Tamil Nadu Governor R.N. Ravi with CM M.K. Stalin

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WHY THE DELAY?

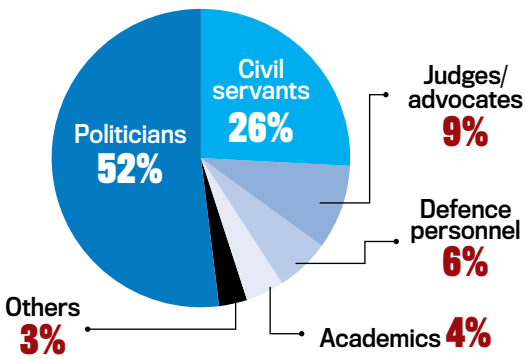
The governor's assent or that of the President is necessary for a bill—except a money bill—passed by the legislature to become law. While Article 163 of the Constitution deals with the powers of the governor, Article 200 specifically deals with the issue of granting of assent to bills (see *New Round: Guv vs CM*).

As the apex court has held in various cases, governors cannot exercise their discretionary powers while withholding assent or returning a bill and must act as per the advice of the council of ministers. However, there is no timeline prescribed for governors to decide on a bill. The current conflict is over this ambiguity—Raj Bhavans have exploited it to sit on bills indefinitely.

If the governor returns a bill with/without any corrective recommendation, the state can re-enact it. Once this is done, the governor is bound to give assent. To avoid this, the governors sit on bills they don't approve of. The reasons for disapproval can vary—from constitutional impropriety in the bill to political differences or tussle over turf. For instance, eight of the bills Ravi has an issue with are related to a proposal to amend the statutes of certain state universities to enable the CM to take over the role of the chancellor, replacing the governor. On November 18, the Tamil Nadu government convened a special session and re-en-

WHO CAN BECOME A GOVERNOR?

Politicians and bureaucrats made up nearly 80 per cent of the governors appointed between 1950 and 2015



Source: Study by Prof. Ashok Pankaj, ex-director, Council for Social Development